

23SMCV05984 23SMCV05984

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-15

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This is an ex parte application to continue the trial. The trial was already continued once and the court warned the parties that it would not do so again. Defendant claims that it only learned at plaintiff's most recent deposition that she had seen additional doctors and that documentation had not been provided. To be clear, it does appear that plaintiff had recently gone to a physical therapist and seen an optometrist but records had not been provided. They should have been provided in response to the supplemental interrogatory and RFP. After almost 45 minutes of deposition, things devolved. Things had been going ok—plaintiff had said that recent documents would be provided and the questions and answers were going forward. But when plaintiff's counsel stated that it had been almost 45 minutes, things went badly. Apparently, plaintiff claims that counsel had agreed to 45 minutes because that was what was left on the 7 hours. Plaintiff's counsel stated that he would not be super-strict about it, but that it was about 45 minutes, and not a whole lot more. Defense counsel then said plaintiff's counsel was lying—something counsel said repeatedly on the record. That caused plaintiff's counsel to say the same thing. Defense counsel then started asking more hostile questions, such as whether plaintiff ought to be allowed to drive or whether anyone reported her to the DMV. That caused plaintiff's counsel to instruct the witness not to answer. Defense counsel then justified the questions by calling plaintiff a liar on the record.

In the ex parte, defense contends that medical

information was “deliberately withheld.”

That is not a fair characterization.

It might have been withheld, but more likely by accident because it was recent. Defendant also claims that plaintiff has refused to produce those records.

At the deposition, there was no such refusal, but apparently they have still not been forthcoming. And defendant states that plaintiff was not allowed to testify about her handwritten journal, although the court may have missed the evidence on that.

Defense counsel is not behaving well. The court is not sure what the agreement was between counsel prior to the deposition, but stating on the record and in front of the client that a lawyer is lying is bad conduct and ought never have happened. Not just once, but many times. Obviously frustrated, defense counsel's questions did start getting hostile.

Defense counsel also, again on the record, called plaintiff a liar. That is also very inappropriate. And at some point, plaintiff's counsel was right to shut it down. Defense counsel also did not mention that plaintiff's counsel had apparently only agreed to about 45 minutes anyway—or at least that such was plaintiff's counsel's position.

At this point, based on an ex parte without much chance for plaintiff to really respond, the court will CONTINUE the application to the FSC. However, there was an opposition. In it, plaintiff states that the medical records were in fact produced shortly before the deposition, it is just that defendant apparently had not seen them. Plaintiff's counsel also states that the parties had finished the deposition a while ago except for the potential need for additional time relating to plaintiff's handwritten journal (which did not really seem to be the basis of the deposition at issue now). And that defense counsel mischaracterizes the agreement the parties had and did not note the objection plaintiff's counsel submitted before the deposition. The parties are encouraged, in the meantime, to work this out between themselves. Depositions are to go forward as if it were in court—same level of professionalism and courtesy. If defense counsel believes that the court would have tolerated this kind of behavior at trial, defense counsel is mistaken, at least in this courtroom. The court will not reward that sort of thing by way of ex parte

relief. Nor does the court believe that the parties have truly engaged in a good faith effort to resolve this. Plaintiff, for its part, has apparently not been willing to talk to defense counsel since the deposition. That is also not proper. The court notes that it is not denying the application. If the application is ultimately granted, the court is not sure when the case can be restored to the calendar. Right now, the end of the line is April 2028.